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Submitter Information

Name: Lorenzo Hall
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[REDACTED]

General Comment

See attached file(s)

Attachments

PublicComment

From:
Lorenzo Hall
Author and Creative Writer

Re: National Science Foundation's Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

I am an everyday American who works in a creative field. My trade for majority of my adult life has been related to creating original works. It's a skill that takes time and training beyond just typing down words, but knowing how to use them effectively. Whether it's evoking strong visuals within the minds of readers or knowing how to reach them emotionally, it is all part of work that had to come from both a desire to do that work and the time invested into it. That ultimately culminated in my books being published as well as outside work I have done. Yet, the way current LLM models are expected to operate, that would result in my work and my creations being potentially stolen with no compensation, much less a way to pursue legal action if that theft comes to pass.

As of right now, the AI systems made by Big Tech companies like OpenAI (Microsoft) and Google threaten to disenfranchise and steal from people with specialized skills, like myself, with their recent demand to create special carve outs in copyright law.

AI systems can only be produced by first training on work made by people. My own work, and the work of hundreds of thousands of other everyday American creators was taken and fed into these AI systems without our consent or any compensation. They ingest our work, reassemble it, and then sell it back to our clients – directly competing with us and cutting us out of the marketplace. In a country that boasts about law and order, inaction on behalf of people who've had their intellectual property pilfered is unacceptable as well as shameful.

Now these Big Tech companies are asking this administration to create exceptions and loopholes to make this practice of stealing American creators' copyrighted work legal precedent. They are suggesting that if a machine ingests and reproduces copyrighted work, it is somehow suddenly "fair use."

They seem to believe that anything and everything on the internet – regardless of who owns it – should be theirs for the taking. They claim that if this administration does not allow them to rewrite the law in this way, it will stifle American innovation. Instead, it will have the opposite effect. The purpose of American copyright law is to protect the incentive to create and innovate.

If we the American people do not own our creations, and everything we put online will be stolen by Big Tech giants, what will be the incentive to create? If everyday Americans create a new innovative piece of computer code, a new visual design, or a new piece of music only to have it immediately stolen by Google and Microsoft, why bother creating it in the first place? How will we possibly make a living doing these things? Even for someone who is dismissive of the arts, one has to understand that it will lead to a more feeble populace. If no one knows how to write without machine assistance then how will they develop the skills to articulate spoken words, much less understand and perform tasks that machines are incapable of. If no one is able to create or appreciate music, then who would take time to learn even patriotic songs like the national anthem? Even then, if no one has a way to create safely and develop their skills and make a living, then even major companies will eventually die out as no one will form the skills to work in those locations in future years. It is, in essence, a short term and ill-gotten gain with long term harm for America and Americans.

If you want to protect American innovation, then protect American creators. **Do not create new copyright exemptions that allow Big Tech companies to exploit and steal from creators and everyday Americans without permission, compensation, or transparency.**

This administration's AI Action Plan should focus not on giving away creator content to Big Tech companies, but rather on ensuring a fair marketplace with competition:

- First, the government should ensure that creators and everyday Americans give effective **consent**, so that we can decide when and where our work is used by AI systems, as well as a legal means for restitution if that work is stolen without our consent.
- Second, the AI Action Plan should encourage a robust **licensing** marketplace, so that the incentive to create for small businesses and individuals is preserved. Our work has immense economic value, so the value generated by that work should accrue to the original creators, not just Big Tech.

- Finally, the AI Action Plan should require **transparency** from Big Tech companies, requiring them to disclose what material is in their training datasets, and label what content is AI generated.

We should not sacrifice the hard work of hundreds of thousands of Americans and give it away to Big Tech by rewriting copyright law.